



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2024-31956 / PODS Case No. C-030364 regarding Police Officer Daniel Orleans, Tax No. 964688

Date: March 19, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Orleans spoke discourteously and used offensive language towards an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Police Officer Orleans will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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May 15, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Daniel Orleans (Tax Reg #964688, DADS #2024-31956)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with a penalty of Training was agreed upon and signed by all parties on March 19, 2025. Assistant Deputy Commissioner Paul M. Gamble Sr. endorsed the negotiated settlement on May 6, 2025.

On May 29, 2023, an individual named [REDACTED] was arrested on Staten Island for breaking into a vehicle. After his arrest, he was taken to Staten Island University Hospital. Officer Orleans went to the hospital to transport him back to the 122nd precinct stationhouse. While at the hospital, BWC captured Officer Orleans stating to Mr. [REDACTED] that he was "full of shit" in response to CW saying he did not believe what PO was saying and also using the term "fat bitch". CCRB deemed these statements to be discourteous and offensive, serving no legitimate police purpose.

For the charge of offensive language, the disciplinary matrix lists a mitigated penalty of the forfeiture of one (1) penalty day, a presumptive penalty of the forfeiture of twenty (20) vacation days, and an aggravated penalty of the forfeiture of Termination. The negotiated settlement deviates from NYPD disciplinary guidelines as offensive language for the following reasons:

The basis for this recommendation is Officer Orleans's seven years of service and the fact that he received 8 out of 10, above standards, in his most recent evaluation.

Respectfully submitted,

Brian Arthur
Brian Arthur, Esq.
Deputy Chief Prosecutor
Civilian Complaint Review Board